

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Filed on

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MANNY TATE,

Index No.

Plaintiff,

Plaintiff designates Bronx
County as place of trial

-against-

SUMMONS

CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, POLICE OFFICER LIVAN J.
DEL ROSARIO – SHIELD No 29228, POLICE
OFFICER JULIO ESCOTTO – SHIELD No
20748 AND JOSE A. RODRIGUEZ AND
YONABELL A. RODRIGUEZ,

The basis of venue is the place of
the occurrence of the tort.

Plaintiff resides at:
1520 Sheridan Avenue
Bronx, NY 10456

Defendants.
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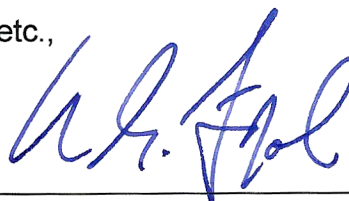
County of Bronx

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Amended Complaint.

Dated: New York, New York
December 7, 2023

Yours, etc.,



Nussin S. Fogel, Esq.
LAW OFFICES OF NUSSIN S. FOGEL, PLLC
Attorney for Plaintiff
299 Broadway - Suite 1818
New York, New York 10007
(212) 385-1122

Defendants' Addresses:

CITY OF NEW YORK
1 Centre Street
New York, NY 10007

NEW YORK POLICE DEPARTMENT
One Police Plaza
New York, NY 10007

POLICE OFFICER LIVAN J. DEL ROSARIO – Shield No.29228
c/o NEW YORK POLICE DEPARTMENT
45th Precinct
2877 Barkley Avenue
Bronx, NY 10465

POLICE OFFICER JULIO ESCOTTO – Shield No. 20748
c/o NEW YORK POLICE DEPARTMENT
School Safety Division
One Police Plaza
New York, NY 10038

JOSE A. RODRIGUEZ
2904 Swanson Street
Easton, PA 18045

YONABELL A. RODRIGUEZ
316 7th Street
Fairview, NJ 07022

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MANNY TATE,

Plaintiff,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, POLICE OFFICER LIVAN J. DEL
ROSARIO – SHIELD No 29228, POLICE OFFICER
JULIO ESCOTTO – SHIELD No 20748 AND JOSE
A. RODRIGUEZ AND YONABELL A. RODRIGUEZ,

Defendants.
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Plaintiff, MANNY TATE, for his Verified Complaint by his attorney, LAW OFFICES
OF NUSSIN S. FOGEL, PLLC respectfully alleges as follows:

1. That, at all times hereinafter mentioned, plaintiff herein was and still is a
resident of the County of Bronx, City and State of New York.

2. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK,
was and still is a municipal corporation duly organized under the laws of the State of New
York.

3. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE
DEPARTMENT, was and still is a municipal agency of defendant, CITY OF NEW YORK.

4. That, at all times hereinafter mentioned, defendant, POLICE OFFICER
LIVAN J. DEL ROSARIO – Shield No.29228, was and still is an employee of defendant,
CITY OF NEW YORK.

5. That, at all times hereinafter mentioned, defendant, POLICE OFFICER
LIVAN J. DEL ROSARIO – Shield No.29228, was and still is an employee of defendant,
NEW YORK POLICE DEPARTMENT.

6. That, at all times hereinafter mentioned, defendant, POLICE OFFICER JULIO ESCOTTO – Shield No. 20748, was and still is an employee of defendant, CITY OF NEW YORK.

7. That, at all times hereinafter mentioned, defendant, POLICE OFFICER JULIO ESCOTTO – Shield No. 20748, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.

8. That, plaintiff herein has complied with all of the conditions precedent to the bringing of the within action and more particularly, on or about the 13th day of December, 2022, and within ninety (90) days after the occurrence set forth herein, plaintiff duly served a written Notice of Claim upon the defendants herein, pursuant to law, and was assigned claim number 2022PI036026; that, more than thirty (30) days have elapsed since said Notice of Claim has been served; that said claims remains unadjusted and defendants herein have failed and refused to make any adjustments thereto; that the within action has been commenced within one year and ninety days of the date of the occurrence; and a statutory hearing was held on December 5, 2023.

9. That, on or about October 13, 2022 at approximately 7:10 p.m. plaintiff herein was a lawfully on West 225 Street approximately 252 feet West of Exterior Street, Bronx, NY.

10. That, on or about October 13, 2022 at approximately 7:10 p.m. at the aforesaid location plaintiff herein was stopped, detained and injured by and through the negligent and improper use of holds, maneuvers, movements and techniques while being arrested by defendants, POLICE OFFICER LIVAN J. DEL ROSARIO– Shield No.29228 and POLICE OFFICER JULIO ESCOTTO – Shield No. 20748.

AS AND FOR A FIRST CAUSE OF ACTION

11. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "10" as if the same had been fully set forth herein.

12. That, at the aforesaid time and place, defendants, POLICE OFFICER LIVAN J. DEL ROSARIO – Shield No.29228 and POLICE OFFICER JULIO ESCOTTO – Shield No. 20748, seriously and severely injured plaintiff herein.

13. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, by its agents, servants and employees were careless and negligent in permitting plaintiff herein to sustain serious and severe injuries and in failing to exercise the necessary amount of care and caution reasonable under the circumstances to prevent this foreseeable occurrence.

14. That, plaintiff's injuries were due solely to the careless, negligent and reckless conduct on the part of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, without any negligence on the part of plaintiff herein contributing thereto.

15. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, negligently disregarded their duty to protect plaintiff herein; negligently failed to prevent plaintiff herein from being seriously and severely injured; negligently failed to prevent its agents, servants and/or employees from using improper holds, maneuvers, movements and techniques against plaintiff herein; negligently took no action to stop the use of said improper holds, maneuvers, movements and techniques on plaintiff herein and by reason of the foregoing inflicted serious injuries upon plaintiff herein; negligently failed to provide adequate safety and security so as to protect plaintiff herein; negligently failed to provide adequate safeguards and protection so that plaintiff herein would not be subject to the use of said improper holds, maneuvers, movements and techniques without provocation

or knowledge that plaintiff herein posed a danger or threat; and negligently failed to take all reasonable and necessary precautions to prevent the occurrence herein.

16. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendants in their negligent performance and execution of its police, enforcement and investigational duties.

17. That, as a result of the aforesaid occurrence, plaintiff herein suffered serious, severe physical, personal and emotional injuries, medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS FOR A SECOND CAUSE OF ACTION

18. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "17" as if the same had been fully set forth herein.

19. That, at the aforesaid time and place, defendant officers, POLICE OFFICER LIVAN J. DEL ROSARIO – Shield No.29228 and POLICE OFFICER JULIO ESCOTTO – Shield No. 20748, seriously and severely injured plaintiff herein.

20. That, defendants, POLICE OFFICER LIVAN J DEL ROSARIO – Shield No.29228 and POLICE OFFICER JULIO ESCOTTO – Shield No. 20748, carelessly, and negligently injured plaintiff herein and failed to exercise the necessary amount of care and caution which a reasonable person would have exercised to prevent this foreseeable occurrence.

21. That, plaintiff's injuries were due solely to the careless, negligent and reckless conduct on the part of defendants, POLICE OFFICER LIVAN J. DEL ROSARIO – Shield No.29228 and POLICE OFFICER JULIO ESCOTTO – Shield No. 20748, without any negligence on the part of plaintiff herein contributing thereto.

22. That, defendants, POLICE OFFICER LIVAN J. DEL ROSARIO – Shield No.29228 and POLICE OFFICER JULIO ESCOTTO – Shield No. 20748, disregarded their duty to protect plaintiff herein; negligently used improper holds, maneuvers, movements and techniques on plaintiff herein and by reason thereof inflicted serious injuries upon plaintiff herein; failed to prevent plaintiff herein from being subjected to the negligent use of improper holds, maneuvers, movements and techniques; negligently took no action to stop the use of said improper holds, maneuvers, movements and techniques on plaintiff herein and by reason of the foregoing inflicted serious injuries upon plaintiff herein and negligently, carelessly and recklessly performed and executed their police, enforcement and investigational duties.

23. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendants, POLICE OFFICER LIVAN J. DEL ROSARIO – Shield No.29228 and POLICE OFFICER JULIO ESCOTTO – Shield No. 20748, in the performance and execution of their police, enforcement and investigational duties.

24. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION

25. That, plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs “1” through “24” as if the same had been fully set forth herein.

26. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, were negligent in the hiring, supervision, training and retention of defendants, POLICE OFFICER LIVAN J. DEL ROSARIO – Shield No.29228 and POLICE

OFFICER JULIO ESCOTTO – Shield No. 20748, who caused plaintiff herein to incur serious and severe personal injuries.

27. That, defendants herein knew or should have known that, prior to, at and subsequent to the time when defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, engaged defendants, POLICE OFFICER LIVAN J. DEL ROSARIO – Shield No.29228 and POLICE OFFICER JULIO ESCOTTO – Shield No. 20748, that they were persons of incompetence and indifference; that they had previously used improper holds, maneuvers, movements and techniques on persons within their care and custody and thereby inflicted serious injuries thereupon; and were known by general reputation to be incompetent and indifferent.

28. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, failed and neglected to make any, or appropriate, inquiries with respect to the competence, temperament and character of their employees the defendants, POLICE OFFICER LIVAN J. DEL ROSARIO – Shield No.29228 and POLICE OFFICER JULIO ESCOTTO – Shield No. 20748, when these defendant police officers were employed and engaged by defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT.

29. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, in the hiring, supervision, training and retention of defendants, POLICE OFFICER LIVAN J. DEL ROSARIO – Shield No.29228 and POLICE OFFICER JULIO ESCOTTO – Shield No. 20748.

30. That, by virtue of the aforesaid, plaintiff herein suffered serious and severe personal and emotional injuries and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION

31. That, plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "30" as if the same had been fully set forth herein.

32. That, at all times hereinafter mentioned, defendant, JOSE A. RODRIGUEZ was and still is a resident of the City of Easton, State of Pennsylvania.

33. That, at all times hereinafter mentioned, defendant, YONABELL A. RODRIGUEZ, was and still is a resident of Fairview, State of New Jersey.

34. That, at all times hereinafter mentioned, defendant, YONABELL A. RODRIGUEZ, was the owner of a certain motor vehicle bearing license plate number, W53RCU, New Jersey.

35. That, at all times hereinafter mentioned, defendant, JOSE A. RODRIGUEZ was the operator of a certain motor vehicle bearing license plate number W53RCU, New Jersey.

36. That, at all times hereinafter mentioned, defendant, JOSE A. RODRIGUEZ operated the aforesaid motor vehicle in the course, furtherance and scope of his employment with defendant, YONABELL A. RODRIGUEZ.

37. That, at all times hereinafter mentioned, defendant, JOSE A. RODRIGUEZ, operated the aforesaid motor vehicle with the permission, consent and knowledge of defendant, YONABELL A. RODRIGUEZ.

38. That, at all times hereinafter mentioned, plaintiff, MANNY TATE was a lawful pedestrian traversing West 225 Street, 252 feet west of Exterior Street, in the county of Bronx, City and State of New York

39. That, at all times hereinafter mentioned, West 225 Street, 252 feet west of

Exterior Street was and is a public thoroughfare, located in the County of Bronx, City and State of New York.

40. That, on or about the 13th day of October 2022, at approximately 7:10 p.m., the aforesaid motor vehicle owned by defendant, YONABELL A. RODRIGUEZ, and operated by defendant, JOSE A. RODRIGUEZ, came into contact with each other.

41. That, the occurrence herein was occasioned as a result of the negligence of defendants JOSE A. RODRIGUEZ and YONABELL A. RODRIGUEZ. in the ownership, operation, maintenance and control of their motor vehicles, without plaintiff herein contributing thereto.

42. That, as a result of the aforesaid, plaintiff, MANNY TATE, was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses.

43. That, as a result of the aforesaid, plaintiff, MANNY TATE, was caused to sustain serious and severe personal injuries as defined by §5101 et seq. of the Insurance Law of the State of New York.

44. That, the within action for damages for personal injuries falls into one or more of the sections as set forth in CPLR §1602 and the limitations on liability as set forth therein do not apply.

45. That, as a result of the aforesaid, plaintiff herein was caused to be damaged in a sum of money which exceeds the monetary jurisdiction of all lower Courts.

WHEREFORE, plaintiff herein demands judgment against defendants herein in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a First Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Second Cause of Action; in a sum of money which exceeds the

monetary jurisdiction of all lower courts, as and for a Third Cause of Action and in a sum of money which exceeds the monetary jurisdiction of all lower courts, AS AND FOR A Fourth cause of Action, together with interest, costs and disbursements herein.

Dated: New York, NY
December 7, 2023

Yours, etc.,

LAW OFFICES OF NUSSIN S. FOGEL, PLLC
Attorney for Plaintiff
Office & Post Office Address
299 Broadway, Suite 1818
New York, NY 10007
(212) 385-1122

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)

COUNTY OF BRONX)

I, NUSSIN S. FOGEL, the undersigned, an attorney admitted to practice in the Courts of New York State, state that I am a member of LAW OFFICES OF NUSSIN S. FOGEL, PLLC, attorney of record for the plaintiff herein, in the within action; I have read the foregoing **Complaint** and know the contents thereof; the same is true to my own knowledge, except as the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by plaintiff, is that plaintiff resides outside of the county where affirmant maintains his office.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Information, records and data contained in affirmant's file and conversations had with the plaintiff herein.

_____
NUSSIN S. FOGEL

I affirm that the foregoing statements are true, under the penalties of perjury

Dated: New York, New York
December 7, 2023